

CHRISTOPHER HOLBROOK; ET AL. vs. MICHAEL LOFY; ET AL.
Case No. CU26-02009

Defendants and Cross-Complainants BIRDS LANDING LLC, DANIEL CIRILLO and RICHARD CIRILLO Motion to Appear Pro Hac Vice

TENTATIVE RULING

The unopposed applications by Danny C. Lallis, Esq. and Jie Shi Chen, Esq. to appear pro hac vice are GRANTED.

MICHAEL BUFORD vs. G. MATTESON; ET AL.
Case No. FCS057847

Demurrer

TENTATIVE RULING

The parties are to appear. At the hearing, the Court's tentative ruling is as follows:

Defendant Matteson's demurrer is sustained without leave to amend.

Any claims for money or damages, either based on contract or for injury for which the public entity is liable, must first be presented to the public entity. (Gov. Code §§ 905, 945.4.) Compliance with the claims statutes is a condition precedent to maintaining an action against a public entity and failure to present a claim to the public entity is fatal to the suit. (*State of Cal. v. Superior Court* (2004) 32 Cal.4th 1234, 1240; *City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 454-455; *Sofranek v. County of Merced* (2007) 146 Cal.App.4th 1238, 1246; *Spencer v. Merced County Office of Educ.* (1997) 59 Cal.App.4th 1429, 1434-1435; *Taylor v. Mitzel* (1978) 82 Cal.App.3d 665, 672.) This claims presentation requirement applies equally to any claims against a public employee acting within the scope of his or her employment. (Gov. Code §§ 950.2, 950.6; *People ex rel. Harris v. Rizzo* (2013) 214 Cal.App.4th 921, 939.)

A plaintiff may be excused from the claim presentation requirement if a public entity frustrates a claimant's ability to comply. (*State of Cal. v. Superior Court* (2004) 32 Cal.4th 1234, 1245; *Ard v. County of Contra Costa* (2001) 93 Cal.App.4th 339, 346-347.) But, facts supporting estoppel "must be pleaded in the complaint with sufficient accuracy to disclose the facts relied upon and the plaintiff must prove all of the elements constituting it." (*Judelson v. Am. Metal Bearing Co.* (1948) 89 Cal.App.2d 256, 266.)

Plaintiff has not pleaded compliance with the claim presentation requirement of the Tort Claims Act, but instead alleged that he should be excused from the requirement because there was a quarantine that prevented him from being able to timely file or investigate his "complaint". However, Plaintiff has not sufficiently alleged facts

establishing that the nature or duration of the quarantine actually prevented him from submitting a claim to the Department of General Services within six months of accrual of his cause of action (Gov. Code § 911.2(a)) or from submitting an application to present a late claim within one year of accrual of his cause of action (Gov. Code § 911.4(a)).

Additionally, Defendant Matteson cannot be held liable for any act or omission “to promote the public health of the community by preventing disease or controlling the communication of disease within the community” (Gov. Code § 855.4(a)) or for any act or omission that was the result of the exercise of discretion vested in her (Gov. Code § 820.2).

Plaintiff has failed to show that it is reasonably possible to cure these defects by amendment. (*Blatty v. New York Times Co.* (1986) 42 Cal.3d 1033, 1040.)

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